

TENTATIVE RULING FOR August 13, 2026

Department S22 – Judge David Driscoll

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CIVSB2425016

VICKI HUNTER-WADE v. KORRYNN BUCHELE, et al.

TENTATIVE RULING

Plaintiff Vicki Hunter-Wade contends she was impermissibly locked out of the office she was renting from Defendants Korrynn Buchele and ABO Enterprises Co., Inc. (ABO). (It appears the complaint misspelled Buchele's name as "Buchelle.") The self-represented Hunter-Wade then commenced suit against Buchelle and ABO in August 2024.

Through the operative first amended complaint (FAC), Hunter-Wade adds the Bates (Brian and Lisa), the Katzmans (Jack and Linda), and Brian Barrad as additional defendants, with the latter three being sued in the capacities as trustees of various trusts. The FAC alleges Hunter-Wade entered into a lease agreement with Defendants for an office suite in San Bernardino. The lease was for a one-year term ending on October 31, 2028, but continuing month-to-month thereafter. Defendants served a three-day notice to pay or quit on June 21, 2024, but the notice was defective because it was e-mailed, improperly included weekend days, and did not identify the available days or hours where rent could be paid. (FAC at ¶¶ 14-16.)

Defendants then engaged in self-help by changing the locks and refusing to provide Hunter-Wade with access unless she paid the full amount and a \$150 reinstatement fee. Defendants also removed Hunter-Wade's personal property. (FAC at ¶¶ 17-20.) Overall, the FAC includes claims for (1) breach of the implied covenant of good faith and fair dealing, (2) breach of the covenant of quiet enjoyment, (3) illegal lockout, (4) trespass, (5) negligence, (6) intentional infliction of emotional distress, (7) fraud—negligent

misrepresentation, (8) violation of Business & Professions Code section 17200, et seq., and (9) exemplary damages. Hunter-Wade also filed “doe” amendments adding Hani Gabriel and Gabriel Realty Group Inc. (GRG).

In response to the lawsuit, ABO and Buchelle cross-complained against Hunter-Wade for indemnification, apportionment of fault, and breach of contract based on Hunter-Wade’s failure to pay rent and her continued occupancy of the property.

The Motion for Summary Adjudication

The motion, arguments presented, and documents submitted

Now, through the pending motion, Hunter-Wade seeks summary adjudication on the “issue of Liability” and requests setting the matter for trial “on the sole issue of damages”, or in the alternative, for issue and evidentiary sanctions, as against ABO and GRG. The motion is made on the grounds that there is no triable issue of material fact as to Defendants’ liability for the unlawful lockout since Defendants admitted to the lockout in verified discovery responses. Hunter-Wade also argues transactional records show that ABO engaged in unlicensed real estate broker activity.

The motion is supported by a declaration from Hunter-Wade, various transactional documents, the 3-day notice, a property management and broker supervision agreement, meet and confer correspondence regarding discovery, ABO’s responses to written discovery, and a separate statement of fact.

The motion is opposed by ABO, as well as the Katzmans in the same opposition, on the grounds that Hunter-Wade expressly agreed to the lockout in writing, the Business & Professions Code sections referenced are inapplicable, and Hunter-Wade’s meet and confer efforts were inadequate (though there is no such obligation for summary judgment motions so the underlying evidence and argument are irrelevant—see Code Civ. Proc., § 437c; defendants cite to CCP § 439(a), which pertains to motions for judgment on the pleadings not MSJ’s).

The opposition is supported by a declaration from Buchele, a declaration from attorney James Penman, an opposing separate statement of fact, the lease agreement, communications with Hunter-Wade, an “open receivables” spreadsheet, and evidentiary objections. To the extent the motion is procedurally defective (see discussion below), the Court need not rule on the evidentiary objections. (Code Civ. Proc., 437c, subd. (q).)

Hunter-Wade has replied and submits a response to Defendants’ evidentiary objections, a reply separate statement (“There is no provision in [Code of Civil Procedure section 437c] for” a reply to a separate statement in opposition. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.), her own declaration, an e-mail from her to Penman, a May 15, 2026 minute order, among other exhibits, to which Defendants assert additional objections. Evidence with the reply is generally not permitted. (Code Civ. Proc., § 437c, subd. (b)(4) [reply “shall not include any new evidentiary matter”].) In this regard, the Court can disregard the new evidence. Defendants then submit amended declarations from Buchele and Penman, and a declaration from JoEva Peabody (a paralegal with Penman’s office). Hunter-Wade in turn submitted supplemental exhibits and a supplemental declaration.

The facts presented with the motion

The facts presented with the motion indicate Hunter-Wade was locked out of the premises, Defendants did not obtain a writ of execution, and the property was not abandoned. (Fact No.’s 1-3) The evidence cited, consisting of ABO’s discovery responses, indicate it (ABO) changed the locks (but the date of that

change is unspecified). ABO also acknowledges that no writ of possession was obtained and there is no contention that Hunter-Wade abandoned the property.

In the opposition, Defendants indicate Hunter-Wade consented to the lockout, citing the Buchele declaration. In the declaration, Buchele indicates she is the office manager for ABO, Hunter-Wade was frequently late on paying rent, numerous three-day notices were served, and on June 25, 2024, Hunter-Wade was informed that her suite had been closed, though ABO contends the closure was “administratively” done and the locks were not changed. The correspondence also indicates that if Hunter Wade desired to reopen the suite she would have to pay another \$150. Hunter Wade then responded by outlining what she could pay and when (which would not cover the delinquency) and that “if the doors needed to stay locked until then” that she was “ok with that.” (Bucheles Decl., Ex. 1.) Buchele took the responses as consent to the locks being changed.

ABO sent a follow up e-mail on July 3, 2024 advising payment was not received and it would “have to close you and lock the door.” Another e-mail was sent on July 9, 2024, advising Hunter-Wade the locks had been changed and there was a reinstatement fee of \$150 that was needed by the end of the month. Plaintiff never paid the fee and her items were moved to storage. On August 26, 2024, Hunter-Wade was allowed to retrieve her things. (Bucheles Decl.)

The facts presented with the motion also indicate the 3-day notice to pay rent or quit was served exclusively by e-mail (Fact No. 4) and the lease required all legal notices to be served via U.S. mail. (Fact No. 5.) Plaintiff then characterizes the service of the three-day notice as a breach of the lease and in violation of Code of Civil Procedure section 1162. However, it also appears a three-day notice was mailed by USPS. (Fact No. 6 and Response.)

Plaintiff also indicates ABO does not have an independent corporate real estate license, there is no written property management agreement with the owners of the property, and ABO routinely executes leases and storage contracts identifying itself as the lessor. (Fact No.’s 7-9.)

Summary Adjudication

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims of damages, or one or more issues of duty. (Code Civ. Proc. §437c(f).) A summary adjudication motion may be made by itself, or as an alternative to a summary judgment motion, and is subject to the same rules and procedures as a summary judgment motion. (*Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

The Motion is Procedurally Defective

“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); see also *DeCastro West Chodorow & Burns, Inc. v. Superior Court* (1996) 47 Cal.App.4th 410, 422 [no summary adjudication of a single item of damage that does not dispose of an entire cause of action and “damages claim” means the damages specified in Civil Code § 3294, i.e. punitive damages].)

In *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241, the court of appeal addressed, as is specifically sought in this case, whether “a plaintiff seek summary adjudication of liability only, leaving the resolution of damages to a later trial.” The court concluded such relief is not available: “A plaintiff can obtain summary adjudication of a cause of action only by proving “each element of the cause of action entitling the party to judgment on that cause of action.” As damages are an element of a breach of contract cause of action (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223

Cal.App.4th 221, 229), a plaintiff cannot obtain judgment on a breach of contract cause of action in an amount of damages to be determined later.” (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.)

As a result, it would be improper for this Court to, as Hunter-Wade asks, summarily adjudicate solely “the issue of liability.” The code provides that summary adjudication is proper if it disposes of an *entire cause of action*, which is not the case here as the causes of action also contain claims for damages beyond the issue of liability. There is no statutory basis for a partial summary judgment as to liability and “[a] judge may grant a summary adjudication motion only when the motion completely resolves a cause of action, an affirmative defense, a claim for damages, or an issue of duty[.]” The only exception which allows partial summary adjudication of an issue such as liability is set forth in CCP §437c (t), which permits summary adjudication of a legal issue that does not completely dispose of a cause of action if the parties submit a Joint Stipulation setting forth the issues to be adjudicated and declarations stating the motion to adjudicate will further the interests of judicial economy. (CCP §473c (t)(1)(A)(i) and (ii)). No such stipulation or declarations were submitted to the court prior to the filing of the present motion.

Like a breach of contract claim, damages or harm are also elements of Hunter-Wade’s remaining claims. (See CACI 300 [breach of the implied covenant of good faith]; CACI 1600 and VF 1600 [IIED]), *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974 [fraud]; CACI 2000 [trespass]; CACI 400 [negligence]; *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1144 [prevailing plaintiffs in UCL claims are limited to injunctive relief, which is not sought in this case, and restitution]; *Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 896–897 [breach of the covenant of quiet enjoyment gives rise to a contract action and contract damages]; CACI 1903 [negligent misrepresentation]; *McLaughlin v. National Union Fire Ins. Co.* (1994) 23 Cal.App.4th 1132, 1164 [punitive damages are allowed only in addition to the recovery of actual damages]; *Civic Western Corp. v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 17–18 [restitution, actual damages, and statutory damages are available for forcible entry].)

It is also notable that the Court cannot even summarily adjudicate a single item of compensatory damage that does not resolve an entire cause of action. (*DeCastro West Chodorow & Burns, Inc. v Superior Court* (1996) 47 Cal.App.4th 410, 422 [noting the term damages under section 437c is in reference to punitive damages].) As a result, even had Hunter-Wade attempted to show that some damages were undisputed, which did not occur, the summary adjudication would only be proper if all damages alleged are resolved sufficient to show that an entire cause of action is completely adjudicated.

It is further notable that the FAC broadly includes claims for general and special damages, mental and emotional injury, contractual damages and statutory damages and penalties, without clearly identifying to which cause of action each claim for damage applies. (See FAC at p. 14.) Within the body of the pleading, “actual damages” are also claimed as to each of the causes of action. (See FAC at ¶¶ 33 [actual and special damages claims for implied covenant claim]; ¶ 37 [same as to quiet enjoyment claim]; 42 [illegal lockout claim]; ¶ 47 [trespass claim] ¶ 53 [negligence claim] ¶ 58 [IIED claim]; and ¶ 70 [negligence claim]; see also ¶ 74 [seeking restitution for unfair competition claim].)

Furthermore, the motion is not entirely clear as to which claims adjudication is sought nor does the opening brief outline the elements of each of the claims. Also missing is an analysis applying the law to those facts, though some discussion and authority is cited with respect to the forcible entry and detainer, the breach of the UCL, and the argument related to the validity of the three-day notice.

The defects are significant because under California Rules of Court, Rule 3.1113, a memorandum of points and authorities must be filed in connection with moving papers and the brief must include a

discussion of the statutes and cases in support of the position advanced. In *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931, the court of appeal concluded the trial court did not err in denying a motion by citing Rule 3.1113 and stating it “would not ‘go through the paperwork backwards and forwards to try to figure out how the law applies to the facts.’” Furthermore, under California Rules of Court, Rule, 3.1110(a), the notice of motion must state in the opening paragraph the nature of the order sought and the grounds for its issuance. (See also *Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1545 [trial court generally may only consider the grounds stated in the notice of motion].)

Overall, to the extent actual damages are sought as to each cause of action, summary adjudication as to the issue of liability would not completely dispose of any of the causes of action. The motion is also inadequately noticed and is defectively briefed as to all of the causes of action.

For all of the foregoing reasons, the present motion for summary adjudication is fatally and procedurally defective and the court intends to deny the motion on these grounds alone.

Hunter-Wade’s Arguments regarding the 3-day Notice and the Real Estate Activities

The court will deny the motion based upon the procedural deficiencies discussed above. However, there are also grounds for denial of the motion because the plaintiff’s moving papers do not show that she, as the moving party, has satisfied her burden of establishing certain substantive threshold material issues discussed below.

The defects in the briefing are further highlighted with respect to Hunter-Wade’s arguments related to the 3-day notice and the purportedly unlicensed real estate activities. There is no indication that the service of the 3-day notice to quit is even an element of any of Hunter-Wade’s claim. Indeed, the service of that notice is an element of a claim for **unlawful detainer**. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 614.) Similarly, to the extent it is undisputed that Defendants did not pursue the eviction and did not obtain a writ of execution, the service of the notice to quit, whether valid or not, is immaterial; the claims by Hunter Wade revolve around whether Defendants’ actions, in locking up the property without a writ of execution, constitute a **forcible entry and detainer**.

As for the alleged unfair business practices, it is unclear how Plaintiff would have standing to pursue the allegedly unlicensed activities, certainly those centered on the leases and activities involving third parties. As noted above, restitution is a UCL remedy and Plaintiff has not shown why that remedy would be available to her, at least as it relates to Defendants’ conduct related to the third parties. Even assuming Plaintiff could obtain an injunction, assuming one was sought in the FAC, and assuming that the Court could partially adjudicate the UCL claim as to one type of relief, the underlying evidence submitted is inadmissible as it relates to Defendants’ dealings with third parties.

Otherwise, the plaintiff’s supporting separate statement does not show what Defendants did that allegedly involved conduct for which a license was required. (See separate statement at Fact No.’s 7-9 [indicating ABO did not have a license, ABO did not have a written property management agreement with the owners of the property, but then merely indicating what ABO did with respect to dealings unrelated to the lawsuit].)

The Substance of the Self-Help Claim

“The statutes defining forcible entry (Code Civ. Proc., § 1159) and forcible detainer (Code Civ. Proc., § 1160) reflect a policy, with deep roots in English law, barring the use of forceful self-help to enforce a right to possession of real property and requiring instead the use of judicial process to gain possession. (*Glass v. Najafi* (2000) 78 Cal.App.4th 45, 48–49.) Case law instructs that “a non-violent lock change can support a statutory claim for forcible entry.” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1039 [“The same is true where a locksmith is employed to peaceably change the lock”].)

In this case, Defendants do not suggest that changing the locks cannot support the forcible detainer or the breach of contract/quasi contract claims. Instead, Defendants suggest that Plaintiff consented to the lockout. As for Defendants’ claim that Plaintiff consented, it is not entirely clear whether consent is an affirmative defense or if a lack of consent is an element of the prima facie case. (See 28 Cal. Jur. 3d Ejectment and Related Remedies § 68 [“In a forcible detainer action, the defendant may show that an entry was lawful or that it was made with the plaintiff’s consent given in direct and positive language”].) Based on the statutory language, forcible entry occurs when there is an “unlawful” holding or taking possession the real property, but when there is consent there is no wrong. (See *Civic Western Corp. v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 16-17 [“Where there is a consensual entry, there is no tort, because lack of consent is an element of the wrong”]; 10 Cal. Real Est. § 34:231 (4th ed.) [the “detention is unlawful because a person who obtains possession of property by a forcible entry does not have the right to retain possession”].)

Overall, when the forcible entry claim is based upon a lack of force, it seems that an absence of consent is part of the plaintiff’s prima facie case. (36A C.J.S. Forcible Entry and Detainer § 18 [Although it has been held that an entry is not made with force simply because it is against the will of the occupant, it is not necessary that actual force or violence be used in taking possession of the premises, but any entry which is against the will or consent of the occupant is a forcible entry”].) To the extent the lack of consent is an element of Plaintiff’s claim, she failed to meet her initial burden of establishing the elements of this claim since the issue was not addressed in the motion.

The Motion for Sanctions

As for Hunter-Wade’s request for sanctions, no statutory or legal basis is cited to support said request, whether in the notice of motion or the opening brief. Indeed, the opening brief largely ignores the request for sanctions, i.e. no authority is cited nor analysis provided explaining how the Court has authority to grant the relief requested. As a result, the motion will be denied.

TENTATIVE RULING

(1) The Court denies the motion for summary adjudication in its entirety.

- a. Plaintiff failed to meet her initial burden and the motion is procedurally defective. Summary adjudication is proper only if it completely disposes of a cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1); *DeCastro West Chodorow & Burns, Inc. v. Superior Court* (1996) 47.) The motion in this case is directed solely at whether there is liability, but a plaintiff generally cannot obtain summary adjudication on the issue of liability and leave damages to be determined later when the damages are part of the underlying claim. (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.)

- b. Actual damages are claimed as to each cause of action (See FAC at ¶¶ 33, 37, 42, 47, 53, 58, 70, 74) and to the extent other types of damages or relief are also sought, the Court also cannot adjudicate a single item of damages if it does not completely dispose of the claim. (*DeCastro West Chodorow & Burns, Inc. v Superior Court* (1996) 47 Cal.App.4th 410, 422.) Punitive damages are also only available if actual damages are awarded. (*McLaughlin v. National Union Fire Ins. Co.* (1994) 23 Cal.App.4th 1132, 1164.)

(2) The request for sanctions is denied.

(3) Defendant to give notice of the court's ruling.